



Fugitive Offenders Act 1967

1967 CHAPTER 68

An Act to make fresh provision for the return from the United Kingdom to other Commonwealth countries and United Kingdom dependencies of persons accused or convicted of offences in those countries and dependencies; to regulate the treatment of persons accused or convicted of offences in the United Kingdom who are returned from such countries and dependencies; to authorise the making of corresponding provisions for United Kingdom dependencies, including provisions for the return from such dependencies of persons accused or convicted in the Republic of Ireland; and for purposes connected with the matters aforesaid. [27th July 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Return of offenders to Commonwealth countries and dependencies

1. Subject to the provisions of this Act, a person found in the United Kingdom who is accused of a relevant offence in any other country being—

Persons
liable to be
returned.

- (a) a Commonwealth country designated for the purposes of this section under subsection (1) of section 2 of this Act; or
- (b) a United Kingdom dependency as defined by subsection (2) of that section,

or who is alleged to be unlawfully at large after conviction of such an offence in any such country, may be arrested and returned to that country as provided by this Act.

Designated
Common-
wealth
countries and
United
Kingdom
dependencies.
1948 c. 56.

2.—(1) Her Majesty may by Order in Council designate for the purposes of section 1 of this Act any country for the time being mentioned in subsection (3) of section 1 of the British Nationality Act 1948 (countries having separate citizenship), or any other country within the Commonwealth; and any country so designated is in this Act referred to as a designated Commonwealth country.

(2) In this Act the expression “United Kingdom dependency” means—

- (a) any colony (not being a colony for whose external relations a country other than the United Kingdom is responsible);
- 1967 c. 4. (b) any associated state within the meaning of the West Indies Act 1967; and
- (c) any country outside Her Majesty’s dominions (being a country in which Her Majesty has jurisdiction, or over which She extends protection, in right of Her Government in the United Kingdom) to which Her Majesty may by Order in Council apply this subsection,

not being in any case a country which is or forms part of a designated Commonwealth country.

(3) Her Majesty may by Order in Council direct that this Act shall have effect in relation to the return of persons to, or in relation to persons returned from, any designated Commonwealth country or United Kingdom dependency subject to such exceptions, adaptations or modifications as may be specified in the Order.

(4) For the purposes of any Order in Council under subsection (1) of this section, any territory for the external relations of which a Commonwealth country is responsible may be treated as part of that country or, if the Government of that country so requests, as a separate country.

(5) Any Order in Council under this section, other than an Order to which subsection (6) applies, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) No recommendation shall be made to Her Majesty in Council to make an Order containing any such direction as is authorised by subsection (3) of this section unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

Relevant
offences.

3.—(1) For the purposes of this Act an offence of which a person is accused or has been convicted in a designated Commonwealth country or United Kingdom dependency is a relevant offence if—

- (a) in the case of an offence against the law of a designated Commonwealth country, it is an offence which, however

described in that law, falls within any of the descriptions set out in Schedule 1 to this Act, and is punishable under that law with imprisonment for a term of twelve months or any greater punishment ;

- (b) in the case of an offence against the law of a United Kingdom dependency, it is punishable under that law, on conviction by or before a superior court, with imprisonment for a term of twelve months or any greater punishment ; and
- (c) in any case, the act or omission constituting the offence, or the equivalent act or omission, would constitute an offence against the law of the United Kingdom if it took place within the United Kingdom or, in the case of an extra-territorial offence, in corresponding circumstances outside the United Kingdom.

(2) In determining for the purposes of this section whether an offence against the law of a designated Commonwealth country falls within a description set out in the said Schedule 1, any special intent or state of mind or special circumstances of aggravation which may be necessary to constitute that offence under the law shall be disregarded.

(3) The descriptions set out in the said Schedule 1 include in each case offences of attempting or conspiring to commit, of assisting, counselling or procuring the commission of or being accessory before or after the fact to the offences therein described, and of impeding the apprehension or prosecution of persons guilty of those offences.

(4) References in this section to the law of any country (including the United Kingdom) include references to the law of any part of that country.

4.—(1) A person shall not be returned under this Act to a designated Commonwealth country, or committed to or kept in custody for the purposes of such return, if it appears to the Secretary of State, to the court of committal or to the High Court or High Court of Justiciary on an application for habeas corpus or for review of the order of committal—

General
restrictions
on return.

- (a) that the offence of which that person is accused or was convicted is an offence of a political character ;
- (b) that the request for his return (though purporting to be made on account of a relevant offence) is in fact made for the purpose of prosecuting or punishing him on account of his race, religion, nationality or political opinions ; or
- (c) that he might, if returned, be prejudiced at his trial or punished, detained or restricted in his personal liberty by reason of his race, religion, nationality or political opinions.

(2) A person accused of an offence shall not be returned under this Act to any country, or committed to or kept in custody for the purposes of such return, if it appears as aforesaid that if charged with that offence in the United Kingdom he would be entitled to be discharged under any rule of law relating to previous acquittal or conviction.

(3) A person shall not be returned under this Act to any country, or committed to or kept in custody for the purposes of such return, unless provision is made by the law of that country, or by an arrangement made with that country, for securing that he will not, unless he has first been restored or had an opportunity of returning to the United Kingdom, be dealt with in that country for or in respect of any offence committed before his return under this Act other than—

- (a) the offence in respect of which his return under this Act is requested ;
- (b) any lesser offence proved by the facts proved before the court of committal ; or
- (c) any other offence being a relevant offence in respect of which the Secretary of State may consent to his being so dealt with.

(4) Any such arrangement as is mentioned in subsection (3) of this section may be an arrangement made for the particular case or an arrangement of a more general nature ; and for the purposes of that subsection a certificate issued by or under the authority of the Secretary of State confirming the existence of an arrangement with any country and stating its terms shall be conclusive evidence of the matters contained in the certificate.

(5) The reference in this section to an offence of a political character does not include an offence against the life or person of the Head of the Commonwealth or any related offence described in subsection (3) of section 3 of this Act.

Proceedings for return

Authority
to proceed.

5.—(1) Subject to the provisions of this Act relating to provisional warrants, a person shall not be dealt with thereunder except in pursuance of an order of the Secretary of State (in this Act referred to as an authority to proceed), issued in pursuance of a request made to the Secretary of State by or on behalf of the Government of the designated Commonwealth country, or the Governor of the United Kingdom dependency, in which the person to be returned is accused or was convicted.

(2) There shall be furnished with any request made for the purposes of this section on behalf of any country—

- (a) in the case of a person accused of an offence, a warrant for his arrest issued in that country ;
- (b) in the case of a person unlawfully at large after conviction of an offence, a certificate of the conviction and

sentence in that country, and a statement of the amount if any of that sentence which has been served,

together (in each case) with particulars of the person whose return is requested and of the facts upon which and the law under which he is accused or was convicted, and evidence sufficient to justify the issue of a warrant for his arrest under section 6 of this Act.

(3) On receipt of such a request the Secretary of State may issue an authority to proceed unless it appears to him that an order for the return of the person concerned could not lawfully be made, or would not in fact be made, in accordance with the provisions of this Act.

6.—(1) A warrant for the arrest of a person accused of a relevant offence, or alleged to be unlawfully at large after conviction of such an offence, may be issued— Arrest for purposes of committal.

(a) on the receipt of an authority to proceed, by a metropolitan stipendiary magistrate or by the sheriff or sheriff-substitute of the Lothians and Peebles ;

(b) without such an authority, by a metropolitan stipendiary magistrate or a justice of the peace in any part of the United Kingdom, upon information that the said person is or is believed to be in or on his way to the United Kingdom ;

and any warrant issued by virtue of paragraph (b) above is in this Act referred to as a provisional warrant.

(2) A warrant of arrest under this section may be issued upon such evidence as would, in the opinion of the magistrate or justice, authorise the issue of a warrant for the arrest of a person accused of committing a corresponding offence or, as the case may be, of a person alleged to be unlawfully at large after conviction of an offence, within the jurisdiction of the magistrate or justice.

(3) Where a provisional warrant is issued under this section, the authority by whom it is issued shall forthwith give notice to the Secretary of State, and transmit to him the information and evidence, or certified copies of the information and evidence, upon which it was issued ; and the Secretary of State may in any case, and shall if he decides not to issue an authority to proceed in respect of the person to whom the warrant relates, by order cancel the warrant and, if that person has been arrested thereunder, discharge him from custody.

(4) A warrant of arrest issued under this section may, without being backed, be executed in any part of the United Kingdom and may be so executed by any person to whom it is directed or by any constable.

(5) Where a warrant is issued under this section for the arrest of a person accused of an offence of stealing or receiving stolen property or any other offence in respect of property, a justice of the peace in any part of the United Kingdom shall have the like power to issue a warrant to search for the property as if the offence had been committed within the jurisdiction of the justice.

Proceedings
for committal.

7.—(1) A person arrested in pursuance of a warrant under section 6 of this Act shall (unless previously discharged under subsection (3) of that section) be brought as soon as practicable before a court (in this Act referred to as the court of committal) consisting of a metropolitan stipendiary magistrate or the sheriff or sheriff-substitute of the Lothians and Peebles, as may be directed by the warrant.

(2) For the purposes of proceedings under this section a court of committal consisting of a metropolitan stipendiary magistrate shall have the like jurisdiction and powers, as nearly as may be, including power to remand in custody or on bail, as a magistrates' court acting as examining justices.

(3) For the purposes of proceedings under this section a court of committal consisting of the said sheriff or sheriff-substitute shall have the like powers, including power to adjourn the case and meanwhile to remand the person arrested under the warrant either in custody or on bail, and the proceedings shall be conducted as nearly as may be in the like manner, as if the proceedings were summary proceedings in respect of an offence alleged to have been committed by that person; and the provisions of the Legal Aid and Solicitors (Scotland) Act 1949 relating to such proceedings or any appellate proceedings following thereon shall apply accordingly to that person.

1949 c. 63.

(4) Where the person arrested is in custody by virtue of a provisional warrant and no authority to proceed has been received in respect of him, the court of committal may fix a reasonable period (of which the court shall give notice to the Secretary of State) after which he will be discharged from custody unless such an authority has been received.

(5) Where an authority to proceed has been issued in respect of the person arrested and the court of committal is satisfied, after hearing any evidence tendered in support of the request for the return of that person or on behalf of that person, that the offence to which the authority relates is a relevant offence and is further satisfied—

(a) where that person is accused of the offence, that the evidence would be sufficient to warrant his trial for that offence if it had been committed within the jurisdiction of the court;

- (b) where that person is alleged to be unlawfully at large after conviction of the offence, that he has been so convicted and appears to be so at large,

the court shall, unless his committal is prohibited by any other provision of this Act, commit him to custody to await his return thereunder ; but if the court is not so satisfied or if the committal of that person is so prohibited, the court shall discharge him from custody.

8.—(1) Where a person is committed to custody under section 7 of this Act, the court shall inform him in ordinary language of his right to make an application for habeas corpus or to apply to the High Court of Justiciary for review of the order of committal, and shall forthwith give notice of the committal to the Secretary of State. Application for habeas corpus etc.

(2) A person committed to custody under the said section 7 shall not be returned under this Act—

- (a) in any case, until the expiration of the period of fifteen days beginning with the day on which the order for his committal is made ;
- (b) if an application for habeas corpus, or an application to the High Court of Justiciary for review of the order of committal, is made in his case, so long as proceedings on that application are pending.

(3) On any such application the High Court or High Court of Justiciary may, without prejudice to any other jurisdiction of the court, order the person committed to be discharged from custody if it appears to the court that—

- (a) by reason of the trivial nature of the offence of which he is accused or was convicted ; or
- (b) by reason of the passage of time since he is alleged to have committed it or to have become unlawfully at large, as the case may be ; or
- (c) because the accusation against him is not made in good faith in the interests of justice,

it would, having regard to all the circumstances, be unjust or oppressive to return him.

(4) On any such application the High Court or the High Court of Justiciary may receive additional evidence relevant to the exercise of their jurisdiction under section 4 of this Act or under subsection (3) of this section.

(5) For the purposes of this section proceedings on an application for habeas corpus shall be treated as pending until any appeal in those proceedings is disposed of ; and an appeal shall

be treated as disposed of at the expiration of the time within which the appeal may be brought or, where leave to appeal is required, within which the application for leave may be made, if the appeal is not brought or the application made within that time.

Order for
return to
requesting
country.

9.—(1) Where a person is committed to await his return and is not discharged by order of the High Court or the High Court of Justiciary, the Secretary of State may by warrant order him to be returned to the country by which the request for his return was made unless the return of that person is prohibited, or prohibited for the time being, by section 4 of this Act or this section, or the Secretary of State decides under this section to make no such order in his case.

(2) An order shall not be made under this section in the case of a person who is serving a sentence of imprisonment or detention, or is charged with an offence, in the United Kingdom—

(a) in the case of a person serving such a sentence, until the sentence has been served ;

(b) in the case of a person charged with an offence, until the charge is disposed of or withdrawn and, if it results in a sentence of imprisonment (not being a suspended sentence), until the sentence has been served.

(3) The Secretary of State shall not make an order under this section in the case of any person if it appears to the Secretary of State, on the grounds mentioned in subsection (3) of section 8 of this Act, that it would be unjust or oppressive to return that person, and may decide to make no order under this section in the case of a person accused or convicted of an offence in a United Kingdom dependency if he considers, on any such grounds as are mentioned in paragraphs (a) to (c) of subsection (1) of section 4 of this Act, that the order ought not to be made.

(4) The Secretary of State may decide to make no order under this section in the case of a person accused or convicted of a relevant offence not punishable with death in Great Britain if that person could be or has been sentenced to death for that offence in the country by which the request for his return is made.

(5) The Secretary of State may decide to make no order under this section for the return of a person committed in consequence of a request made on behalf of any country if another request for his return under this Act, or a requisition for his surrender under the Extradition Act 1870, has been made on behalf of another country and it appears to the

Secretary of State, having regard to all the circumstances of the case and in particular—

- (a) the relative seriousness of the offences in question ;
- (b) the date on which each such request or requisition was made ; and
- (c) the nationality or citizenship of the person concerned and his ordinary residence,

that preference should be given to the other request or requisition.

(6) Notice of the issue of a warrant under this section shall forthwith be given to the person to be returned thereunder.

10.—(1) If any person committed to await his return is in custody in the United Kingdom under this Act after the expiration of the following period, that is to say— Discharge in case of delay in returning.

- (a) in any case, the period of two months beginning with the first day on which, having regard to subsection (2) of section 8 of this Act, he could have been returned ;
- (b) where a warrant for his return has been issued under section 9 of this Act, the period of one month beginning with the day on which that warrant was issued,

he may apply to the High Court or the High Court of Justiciary for his discharge.

(2) If upon any such application the court is satisfied that reasonable notice of the proposed application has been given to the Secretary of State, the court may, unless sufficient cause is shown to the contrary, by order direct the applicant to be discharged from custody and, if a warrant for his return has been issued under the said section 9, quash that warrant.

11.—(1) In any proceedings under this Act, including proceedings on an application for habeas corpus in respect of a person in custody thereunder— Evidence.

- (a) a document, duly authenticated, which purports to set out evidence given on oath in a designated Commonwealth country or United Kingdom dependency shall be admissible as evidence of the matters stated therein ;
- (b) a document, duly authenticated, which purports to have been received in evidence, or to be a copy of a document so received, in any proceeding in any such country or dependency shall be admissible in evidence ;
- (c) a document, duly authenticated, which certifies that a person was convicted on a date specified in the document of an offence against the law of, or of a part of, any such country or dependency shall be admissible as evidence of the fact and date of the conviction.

(2) A document shall be deemed to be duly authenticated for the purposes of this section—

- (a) in the case of a document purporting to set out evidence given as aforesaid, if the document purports to be certified by a judge or magistrate or officer in or of the country or dependency in question to be the original document containing or recording that evidence or a true copy of such a document.
- (b) in the case of a document which purports to have been received in evidence as aforesaid or to be a copy of a document so received, if the document purports to be certified as aforesaid to have been, or to be a true copy of a document which has been, so received ;
- (c) in the case of a document which certifies that a person was convicted as aforesaid, if the document purports to be certified as aforesaid,

and in any such case the document is authenticated either by the oath of a witness or by the official seal of a Minister of the designated Commonwealth country or of the Governor or a Minister, secretary or other officer administering a department of the Government of the dependency, as the case may be.

(3) In this section “oath” includes affirmation or declaration ; and nothing in this section shall prejudice the admission in evidence of any document which is admissible in evidence apart from this section.

(4) In the application of this section to Scotland, for the words “admissible as evidence”, in both places where they occur, there shall be substituted the words “sufficient evidence”.

Custody.

12.—(1) Any person remanded or committed to custody under section 7 of this Act shall be committed to the like institution as a person charged with an offence before the court of committal.

(2) If any person who is in custody by virtue of a warrant under this Act escapes out of custody, he may be retaken in any part of the United Kingdom in like manner as a person escaping from custody under a warrant for his arrest issued in that part in respect of an offence committed therein.

(3) Where a person, being in custody in any part of the United Kingdom whether under this Act or otherwise, is required to be removed in custody under this Act to another part of the United Kingdom and is so removed by sea or by air, he shall be deemed to continue in legal custody until he reaches the place to which he is required to be removed.

(4) A warrant under section 9 of this Act for the return of any person to any country shall be sufficient authority for all persons to whom it is directed and all constables to receive that person, keep him in custody and convey him into the jurisdiction of that country.

13.—(1) Any warrant or order to be issued or made by the Secretary of State under any of the foregoing provisions of this Act shall be given under the hand of the Secretary of State or an Under-Secretary of State. Form of warrants and orders.

(2) The Secretary of State may by regulations made by statutory instrument prescribe the form of any warrant or order to be issued or made under the foregoing provisions of this Act.

*Treatment of persons returned from
Commonwealth countries and United Kingdom dependencies*

14.—(1) This section applies to any person accused or convicted of an offence under the law of or of any part of the United Kingdom who is returned to the United Kingdom— Restriction upon proceedings for other offences.

- (a) from any designated Commonwealth country, under any law of that country corresponding with this Act ;
- (b) from any United Kingdom dependency, under this Act as extended to that dependency or under any corresponding law of that dependency.

(2) A person to whom this section applies shall not, during the period described in subsection (3) of this section, be dealt with in the United Kingdom for or in respect of any offence committed before he was returned to the United Kingdom other than—

- (a) the offence in respect of which he was returned ;
- (b) any lesser offence proved by the facts proved for the purposes of securing his return ; or
- (c) any other offence in respect of which the Government of the country or Governor of the Dependency from which he was returned may consent to his being dealt with.

(3) The period referred to in subsection (2) of this section in relation to a person to whom this section applies is the period beginning with the day of his arrival in the United Kingdom on his return as mentioned in subsection (1) of this section and ending forty-five days after the first subsequent day on which he has the opportunity to leave the United Kingdom.

Restoration
of persons
not tried or
acquitted.

15.—(1) This section applies to any person accused of an offence under the law of or of any part of the United Kingdom who is returned to the United Kingdom as mentioned in subsection (1) of section 14 of this Act.

(2) If in the case of a person to whom this section applies, either—

(a) proceedings against him for the offence for which he was returned are not begun within the period of six months beginning with the day of his arrival in the United Kingdom on being returned; or

(b) on his trial for that offence, he is acquitted or discharged under section 7 of the Criminal Justice Act 1948, section 1 of the Criminal Justice (Scotland) Act 1949 or section 5 of the Probation Act (Northern Ireland) 1950, or any corresponding enactment of the Parliament of Northern Ireland for the time being in force,

the Secretary of State may, if he thinks fit, on the request of that person, arrange for him to be sent back free of charge and with as little delay as possible to the country from which he was returned.

*Channel Islands, Isle of Man and United
Kingdom dependencies*

Application to
Channel
Islands and
Isle of Man.

16.—(1) Subject to the provisions of this section, this Act shall extend to the Channel Islands and the Isle of Man, and shall have effect (except for purposes of the references to the United Kingdom in section 3) as if each of them were part of the United Kingdom.

(2) Her Majesty may by Order in Council direct that this Act shall, in its application to any of the said islands, have effect subject to such exceptions, adaptations or modifications as may be specified in the Order.

Application to
colonies and
other
dependencies.

17.—(1) Her Majesty may by Order in Council make provision for extending all or any of the provisions of this Act other than this section to any of the following countries that is to say—

(a) any colony (not being a colony for whose external relations a country other than the United Kingdom is responsible);

(b) any country outside Her Majesty's dominions in which Her Majesty has jurisdiction in right of Her Government in the United Kingdom,

with the substitution of a reference to that country for any reference to the United Kingdom or Great Britain, and with such other exceptions, adaptations or modifications as may be specified in the Order.

(2) Without prejudice to the generality of the foregoing provision, an Order in Council under this section may—

- (a) so far as it extends to any such country provisions of this Act relating to the return of persons to and the treatment of persons returned from designated Commonwealth countries, apply those provisions in relation to the Republic of Ireland as they apply in relation to a designated Commonwealth country;
- (b) so far as it extends to any such country provisions of this Act relating to the return of persons to and the treatment of persons returned from United Kingdom dependencies, apply those provisions in relation to the United Kingdom as they apply in relation to a United Kingdom dependency.

(3) Any Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament

18.—(1) Without prejudice to the powers exercisable by virtue of section 17 of this Act, Her Majesty may by Order in Council make, for any country to which subsection (1) of that section applies, such special provision as appears to Her to be appropriate as between that country and any other country being either a designated Commonwealth country or a United Kingdom dependency—

Alternative
arrangements
for colonies
and
dependencies.

- (a) for authorising and regulating the return to that other country of persons accused or convicted therein of offences;
- (b) for regulating the treatment in the first-mentioned country of persons returned thereto from that other country pursuant to this Act or any Order in Council thereunder or any corresponding law of that other country.

(2) The legislature of any country to which subsection (1) of the said section 17 applies shall have power to make provision, not inconsistent with any Order in Council under that section or under this section which extends to that country, for any purpose for which provision could be made by such an Order in Council.

(3) Any Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Supplemental

19.—(1) In this Act the following expressions have the Interpretation. meanings hereby assigned to them that is to say:—

“application for habeas corpus” means an application for a writ of habeas corpus ad subjiciendum;

“country” includes any territory ;

“dealt with” means tried or returned or surrendered to any country or detained with a view to trial or with a view to such return or surrender ;

“designated Commonwealth country” and “United Kingdom dependency” have the meanings assigned by section 2 of this Act ;

“Governor”, in relation to any country, means the person or persons administering the government of that country ;

“High Court” means Her Majesty’s High Court of Justice ;

“imprisonment” includes detention of any description ;

“race” includes tribe.

(2) For the purposes of this Act a person convicted of an offence in his absence shall be treated as a person accused of that offence.

(3) For the purposes of the application of this Act to Scotland any reference to a justice of the peace shall be construed as a reference to a sheriff or justice of the peace.

Orders in
Council etc.

20.—(1) Any Order in Council under this Act may contain such transitional or other incidental and supplementary provisions as may appear to Her Majesty to be necessary or expedient.

(2) Any power to make an Order in Council or order under this Act includes power to revoke or vary such an Order in Council or order by a subsequent Order in Council or order.

Repeals,
transitional
provisions, etc.

21.—(1) Subject to the provisions of this section, the enactments described in Schedule 2 to this Act are hereby repealed as respects the United Kingdom to the extent specified in the third column of that Schedule.

1881 c. 69.

(2) The repeals effected by subsection (1) of this section shall not affect the operation of the Fugitive Offenders Act 1881 in any case where, before the date on which that subsection comes into force, a warrant endorsed under section 3 of that Act, or a provisional warrant issued under section 4 of that Act, has been executed in the United Kingdom :

Provided that for the purposes of proceedings under that Act in respect of a fugitive from a designated Commonwealth country, subsection (1) of section 4 of this Act shall apply as if—

(a) for the reference to this Act there were substituted a reference to that Act ; and

(b) for references to the court of committal and the order of committal there were substituted references to the magistrate before whom that person is brought under section 5 of that Act and the order of that magistrate.

(3) Without prejudice to subsection (2) of this section, this Act applies to offences committed before as well as after the passing of this Act.

(4) In paragraph 4 of Schedule 3 to the Parliamentary Commissioner Act 1967 c. 13. the reference to the Fugitive Offenders Act 1881 shall include a reference to this Act.

22.—(1) The provisions of this Act other than this section shall come into force on such date as the Secretary of State may by order made by statutory instrument appoint.

(2) Different dates may be appointed under this section for different provisions of this Act, and different dates may be so appointed for any such provision or provisions in relation to different countries.

23.—(1) This Act may be cited as the Fugitive Offenders Act 1967. Short title
and extent.

(2) This Act extends to Northern Ireland.

SCHEDULES**Section 3.****SCHEDULE 1****DESCRIPTION OF RELEVANT OFFENCES
IN DESIGNATED COMMONWEALTH COUNTRIES**

1. Murder of any degree.
2. Manslaughter or culpable homicide.
3. An offence against the law relating to abortion.
4. Maliciously or wilfully wounding or inflicting grievous bodily harm.
5. Assault occasioning actual bodily harm.
6. Rape.
7. Unlawful sexual intercourse with a female.
8. Indecent assault.
9. Procuring, or trafficking in, women or young persons for immoral purposes.
10. Bigamy.
11. Kidnapping, abduction or false imprisonment, or dealing in slaves.
12. Stealing, abandoning, exposing or unlawfully detaining a child.
13. Bribery.
14. Perjury or subornation of perjury or conspiring to defeat the course of justice.
15. Arson or fire-raising.
16. An offence concerning counterfeit currency.
17. An offence against the law relating to forgery.
18. Stealing, embezzlement, fraudulent conversion, fraudulent false accounting, obtaining property or credit by false pretences, receiving stolen property or any other offence in respect of property involving fraud.
19. Burglary, housebreaking or any similar offence.
20. Robbery.
21. Blackmail or extortion by means of threats or by abuse of authority.
22. An offence against bankruptcy law or company law.
23. Malicious or wilful damage to property.
24. Acts done with the intention of endangering vehicles, vessels or aircraft.
25. An offence against the law relating to dangerous drugs or narcotics.
26. Piracy.
27. Revolt against the authority of the master of a ship or the commander of an aircraft.
28. Contravention of import or export prohibitions relating to precious stones, gold and other precious metals.

SCHEDULE 2

Section 21.

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
44 & 45 Vict. c. 69.	The Fugitive Offenders Act 1881.	The whole Act.
53 & 54 Vict. c. 37.	The Foreign Jurisdiction Act 1890.	In Schedule 1 the entry relating to the Fugitive Offenders Act 1881.
5 & 6 Geo. 5. c. 39.	The Fugitive Offenders (Protected States) Act 1915.	The whole Act.